



AI Playbook and Toolkit for Public Health Departments

Public Health AI Policy Landscape and Regulatory Readiness

POL 300

The public health AI policy landscape is evolving quickly across federal agencies, states, local governments, professional organizations, courts, standards bodies, and procurement offices. Public health agencies do not need to wait for every rule to be settled before acting responsibly, but they do need a process for monitoring policy changes and translating them into agency practice. Regulatory readiness means the agency can identify relevant requirements, update internal policies, and document compliance as AI uses change. This module teaches policy and governance staff how to track AI policy developments, interpret their relevance to public health, and maintain internal AI policies that are adaptable. It focuses on readiness rather than legal advice. Learners examine how privacy, civil rights, procurement, public records, cybersecurity, accessibility, data governance, and administrative law may intersect with AI-supported public health work. Policy readiness protects agencies from both inaction and unstructured adoption. It helps leaders make decisions while acknowledging uncertainty, documenting assumptions, and creating mechanisms to update policies as the external environment changes.

Level	intermediate/practitioner
Primary track	Policy Role-Based Track
Appears in tracks	policy, governance-and-security, public-health-executive-leadership, program-management

Learning Objectives

- Identify categories of law, policy, standards, and guidance that may affect public health AI.
- Explain why regulatory readiness requires monitoring, interpretation, documentation, and policy maintenance.
- Distinguish between binding requirements, agency policy, professional guidance, standards, and best practices.
- Create a policy scan process for AI-related developments.
- Produce an AI regulatory readiness memo or policy update plan.

Module Overview

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Jurisdiction and Agency Policy Note

This module provides national-level training guidance for public health agencies and partners. It is not legal advice and does not replace review by agency legal counsel, privacy officers, procurement officials, civil rights staff, records officers, or other authorized decision-makers. Requirements may vary by state, locality, territory, Tribe, agency, funding source, data-sharing agreement, emergency authority, and organizational policy. Learners should use this module to identify the issues that require review and should confirm applicable requirements before approving, procuring, deploying, or publicly communicating about AI-supported work.

Public Health Example

A local health department is considering AI tools for translation, complaint triage, and case note summarization. A policy scan identifies privacy, public records, procurement, accessibility, cybersecurity, and civil rights considerations. The agency creates a readiness memo that distinguishes existing requirements from emerging guidance, recommends interim safeguards, and establishes a quarterly process to update AI policies as requirements evolve.

Topic Deep Dive

Policy readiness begins by identifying relevant domains rather than looking for a single AI law. Public health AI may be affected by health privacy rules, state confidentiality laws, public records requirements, procurement standards, accessibility laws, cybersecurity policies, civil rights obligations, data sharing agreements, records retention rules, and professional ethics. AI-specific policy should be layered onto this existing policy environment.

Agencies should distinguish between different levels of authority. A statute, regulation, contract clause, grant requirement, executive order, agency policy, professional guideline, and technical standard do not all carry the same

legal weight. However, nonbinding guidance can still be important because it may reflect emerging expectations for responsible practice, risk management, transparency, documentation, or auditability.

A policy scan should be assigned to a responsible role or group. The scan should identify sources to monitor, frequency of review, criteria for relevance, and a process for escalating items that may affect agency policy or active AI use cases. The process should avoid overreacting to every news item while still ensuring that meaningful changes are not missed.

Regulatory readiness also requires change management. When policy requirements change, the agency may need to update SOPs, procurement language, risk tiers, training, documentation, vendor oversight, public transparency materials, or incident response procedures. A policy update is not complete until it has been translated into operational practice.

Risks, Failure Modes, and Guardrails

Risks and failure modes include the following:

Assuming there is no policy risk because there is no single AI statute.

Treating nonbinding guidance as irrelevant even when it reflects expected practice.

Failing to update internal policies after legal, procurement, privacy, or cybersecurity changes.

Allowing vendors to define compliance obligations without agency review.

Maintaining policies that are too vague to guide real decisions.

Recommended guardrails include the following:

Assign responsibility for AI policy scanning and interpretation.

Distinguish binding requirements from guidance and best practices.

Maintain a crosswalk from external requirements to internal policies and procedures.

Update training, SOPs, and procurement language when policies change.

Document assumptions, decisions, and unresolved legal or policy questions.

Reflection Questions

Where does this topic appear in your agency, program, or workflow?

Which staff roles would need to understand or apply this concept before AI use is approved?

What could go wrong if this topic is not addressed before implementation?

What evidence would governance, leadership, or operations staff need before moving forward?

Which policy, data, equity, privacy, security, or workflow questions remain unresolved?

Practical Exercise

Create a public health AI policy scan and regulatory readiness memo. Identify relevant policy domains, sources to monitor, current agency policy gaps, likely operational implications, recommended interim safeguards, and a process for ongoing updates.

Expected Artifact or Evidence

AI policy scan plan

Regulatory readiness memo

Policy-domain crosswalk

Recommended policy updates

Ongoing monitoring process

Expected Assignment

- AI policy scan plan
- Regulatory readiness memo
- Policy-domain crosswalk
- Recommended policy updates
- Ongoing monitoring process

Knowledge Check

- 1. What does regulatory readiness mean in this module?
- 2. Which statement is most accurate?
- 3. What is a policy scan?
- 4. What should happen after a policy change affects AI use?
- 5. What is strong completion evidence?

References and Resources

- NIST Artificial Intelligence Risk Management Framework: <https://www.nist.gov/itl/ai-risk-management-framework>
- NIST Generative AI Profile: <https://www.nist.gov/publications/artificial-intelligence-risk-management-framework-generative-artificial-intelligence>
- CDC Public Health Data Strategy and Data Modernization resources: <https://www.cdc.gov/public-health-data-strategy/php/about/index.html>
- OWASP guidance for LLM application security
- Agency policies for privacy, cybersecurity, records, procurement, accessibility, and public communications
- Relevant public health program SOPs, data governance documentation, and implementation plans